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Case Number: 24BBCV00472 Hearing Date: August 19, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

RAYMOND ASATRYAN,

Plaintiff,

vs.

ENCOMPASS INSURANCE COMPANY,

Defendant.

Case

No.:

24BBCV00472

Hearing

Date:

August

19, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION FOR SUMMARY JUDGMENT

MOVING PARTY: Defendant Encompass Insurance
Company

RESPONDING PARTY: Plaintiff Raymond Asatryan

The Court

considered the moving papers, opposition, and reply filed in connection with the instant motion.

BACKGROUND

On February 27, 2024,
Plaintiff Raymond Asatryan ("Plaintiff") brought this action against Defendants Encompass Insurance Company ("Defendant"), alleging causes of action for (1) breach of the duty of good faith and fair dealing and (2) breach of the contractual duty to pay a covered insurance claim. The causes of action arise out of Defendant's alleged failure to provide Plaintiff with benefits under his insurance policy with Defendant after his vehicle was damaged in a hit-and-run incident.

On April 17, 2024, Defendant
filed a demurrer to Plaintiff's first cause of action for breach of the duty of good faith and fair dealing and motion to strike the allegations and prayer for punitive and treble damages.

On June 28, 2024, the
Court sustained the demurrer to the first cause of action with leave to amend, which rendered the motion to strike in connection with that cause of action moot.

On March 25, 2026,
Defendant filed the instant motion for summary judgment.

On June 23, 2026,
Plaintiff filed an opposition.

On June 29, 2026,
Plaintiff filed a reply.

STATEMENT OF FACTS

Defendant provides the following material facts. Plaintiff owned a 2018 Mercedes Benz G63 (the "Vehicle"). (Separate Statement of Undisputed Material Facts ("SUMF") 1.) On September 11 or 12, 2023, the Vehicle was damaged in a collision while parked on the street near the intersection of Arminta and Loma Verde in Canoga Park, outside the home of Plaintiff's friend Artyom Hambardzumyan ("Hambardzumyan"). (SUMF 2.) Plaintiff was not present. (SUMF 3.) Asher Levich ("Levich"), who lived near the collision location, observed the Vehicle parked outside his home for a week or two before the collision. (SUMF, 3-4.) At 12:30 a.m., Levich was home when he heard the accident and ran outside. (SUMF 6.) Levich observed that a pickup truck collided with the Vehicle. (SUMF 7.) Levich saw the pickup truck driver run to a nearby Mercedes SUV, enter the passenger side, and the SUV drove away. (SUMF 7.) Police responded to the scene about 20 minutes following the collision. (SUMF 8.)

Plaintiff filed a claim with Defendant for damage to the Vehicle and gave a recorded statement to Defendant. (SUMF 9-10.) Plaintiff told Defendant the Vehicle was left at Hambardzumyan's home on Friday, September 8, 2023. (SUMF 11.) Plaintiff claimed that Hambardzumyan called Plaintiff to tell him the Vehicle was damaged around 1:30 or 2:00 a.m. and spoke they spoke for about five minutes until Plaintiff told Hambardzumyan to call the police. (SUMF 12-13.) Plaintiff told Defendant that Hambardzumyan called Plaintiff back after calling the police and spoke for an hour while waiting for the police to arrive until Plaintiff went to sleep around 3:00 a.m. (SUMF 14.) Defendant obtained Plaintiff's cell phone records, which do not reflect any lengthy calls between Plaintiff and Hambardzumyan on the morning of September 12, 2023, only two 2-minute calls at 3:14 a.m. and 3:19 a.m., respectively and a 3-minute call at 9:59 a.m. (SUMF 15-18.)

During his recorded statement, Plaintiff initially testified that he was current on payments for the Vehicle since the day he bought it. (SUMF 19.) When asked why he made two payments in August

2023, he testified that he missed a payment while travelling. (SUMF 20.) At his deposition, Plaintiff testified that he never missed any loan payments. (SUMF 21.) However, Defendant obtained Plaintiff's loan payment history, which reflected that Plaintiff missed payments in April and June of 2023, and accrued late charges. (SUMF 22-27.)

Defendant issued a package policy to Plaintiff for the period from October 15, 2022 to October 15, 2023. (SUMF 28.) The policy's provisions provide: "This insurance is based on your honest cooperation with us, so the information you gave to use must be correct to the best of your knowledge. We do not provide coverage to any covered person, who, whether before or after a loss or accident, has: (a) Concealed or misrepresented any material fact or circumstance; (b) Engaged in fraudulent conduct; or (3) Made false statements relating to this insurance; whether as to eligibility or claim entitlement." (SUMF 29.) On December 8, 2023, Defendant denied Plaintiff's claim after determining that Plaintiff misrepresented the facts surrounding his discovery of the loss and the payment history, which were material to Defendant's investigation of the claim. (SUMF 30-32.)

LEGAL STANDARD

Code of Civil Procedure section

437c, subdivision (c), provides that summary judgment is to be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." A defendant "moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant may meet this burden either by showing one or more elements of a cause of action cannot be established or by showing there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, supra, 25 Cal.4th at p. 850.)

If the defendant's prima facie case is met, the burden shifts to the plaintiff to show the existence of a triable issue of material fact with respect to that cause of action or defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, supra, 25 Cal.4th at p. 850.)

"[T]o meet that burden, the plaintiff '... shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action' " (*Merrill v. Navegar, Inc.* (2001)

26 Cal.4th 465, 476–477.) Ultimately, the moving party “bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar at p. 850.)

DISCUSSION

Defendant argues that summary judgment is appropriate because Plaintiff cannot establish a cause of action for breach of contractual duty after Defendant rightfully denied Plaintiff’s claimed loss in response to material misrepresentations Plaintiff made in the presentation of his claim.

A. First

Cause of Action for Breach of the Duty of Good Faith and Fair Dealing

Preliminarily, the Court notes that the only remaining cause of action is the second cause of action for breach of the contractual duty to pay a covered insurance claim. In its June 28, 2024 Minute Order, the Court granted Plaintiff leave to amend his complaint following the demurrer, but Plaintiff did not do so.

In opposition, Plaintiff argues that there are triable issues of material fact regarding whether Defendant breached the implied covenant of good faith and fair dealing by failing to adequately investigate his claims. (Opp., p. 6.) To the extent Plaintiff is attempting to litigate the first cause of action, this is improper as Plaintiff did not amend the complaint following the demurrer. Likewise, Plaintiff has not filed a motion for leave to amend. (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 613 [“After expiration of the time in which a pleading can be amended as a matter of course, the pleading can only be amended by obtaining the permission of the court.”])

B. Second

Cause of Action for Breach of the Contractual Duty to Pay a Covered Insurance Claim

“[T]he elements of a cause of action for breach of contract are (1) the existence

of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

"If

a representation is false in a material point, whether affirmative or promissory, the injured party is entitled to rescind the contract from the time the representation becomes false." (Ins.

Code, § 359.) "In order to void a policy based upon the insured's violation of the standard fraud and concealment clause ..., the false statement must have been knowingly and willfully made with the intent (express or implied) of deceiving the insurer. The materiality of the statement will be determined by the objective standard of its effect upon a reasonable insurer." (Cummings v. Fire Ins. Exchange (1988) 202 Cal.App.3d 1407, 1414 at fn.7 [emphasis in original].) "[M]ateriality is determined by its prospective reasonable relevance to the insurer's inquiry. (Id. at p. 1417.) "[A] statement is not material only if it relates to a matter which ultimately proves to be significant in the ultimate disposition of the claim. Rather, if the misrepresentation concerns a subject reasonably relevant to the insured's investigation, and if a reasonable insurer would attach importance to the fact misrepresented, then it is material." (Ibid. [emphasis in original].) "[M]ateriality is a mixed question of law and fact that can be decided as a matter of law if reasonable minds could not disagree on the materiality of the misrepresentations." (Ibid.)

Defendant points to several

misrepresentations Plaintiff made regarding his financial condition and the circumstances surrounding the claimed accident. First, Defendant argues Plaintiff misrepresented that he never missed payments. Records show that Plaintiff missed multiple payments prior to the September 2023 incident. (SUMF 23-27; See Mot., Exh. 4. [Audio Transcription of Plaintiff's October 25, 2023 Statement at pp. 9-10].) Second, Defendant argues Plaintiff misrepresented that he left the Vehicle at Hambardzumyan's home on September 8, 2023. Levich's testimony demonstrates that the Vehicle was present one or two weeks before the September 12, 2023 incident and Levich and neighbors discussed seeing the Vehicle parked consistently without anyone driving it, for nearly a week and a half before the collision. (SUMF 5, 11; Mot., Exh. 5 [Audio Transcription of Levich's October 24, 2023 Statement at pp.3-6].) Third, Defendant argues Plaintiff misrepresented the circumstances surrounding his discovery of the collision. Plaintiff's cell phone records demonstrate that Hambardzumyan called

Plaintiff at 3:14 a.m. and 3:19 a.m. on September 12, 2023 with both calls lasting two minutes and the next call from Mr. Hambardzumyan was at 9:59 a.m. for three minutes. (SUMF 18; Mot., Exh. 8 [Plaintiff's Cell Phone Records].) This evidence goes against Plaintiff's report that he learned of the incident from Hambardzumyan in a five-minute phone call around 1:30 or 2:00 a.m., Hambardzumyan called the police, and then Hambardzumyan called him back and stayed on the phone with him for nearly two hours, ending the call around 3:00 a.m. (SUMF 12-14; Audio Transcription of Plaintiff's October 25, 2023 Statement at pp. 24-26].)

The Court agrees with Defendant that each of the issues above were material to its investigation of Plaintiff's claim. These are all issues that were reasonably relevant to Defendant's investigation and to which a reasonable insurer would attach importance. The Court finds that Plaintiff's misrepresentations would be grounds for Defendant to deny Plaintiff's claim. (Ins. Code, § 359; Cummings, supra, 202 Cal.App.3d at p. 1414 at fn.7.) As such, Defendant meets its burden of proof and the evidence provided demonstrates that Defendant did not breach the parties' insurance policy. Therefore, the burden shifts to Plaintiff to show a triable issue of material fact.

The Court notes that Plaintiff's opposition was timely untimely (See Code Civ. Proc., § 437, subd. (b)(2)), and it is not accompanied by a responsive separate statement or any opposing evidence. Code of Civil Procedure section 437c, subdivision (b)(3) states: "The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion." Therefore, Plaintiff's failure to file a responsive separate statement or supporting evidence is grounds to grant the motion.

Plaintiff argues that triable issues of material fact exist because Defendant had "outcome bias" such that it used a desired outcome to dictate the evidence needed to reach its position that was not maintained in good faith or on reasonable grounds. (Opp., 15:7-10.) Plaintiff contends that Defendant's denial

lacked a reasonable basis because Plaintiff did not misrepresent or conceal any material facts/circumstances associated with the claim. (Opp., 13:22-25.) With respect to the length of time the Vehicle was parked in front of Mr.

Hambardzumyan, Plaintiff argues his transcript shows he stated the Vehicle was there for nine to ten days, which is consistent with the one-to-two-week timeframe; he also argues that it is immaterial how long the car was parked there. (Opp., 14:9-17.) With respect to the late payments, he contends his late payments were cured before the incident such that he did not misrepresent whether his payments were current and the status of his payments should not impact his claim. (Opp., 14:17-22.)

The Court notes that Plaintiff

does not cite his recorded statement regarding the length of time he parked the Vehicle at Hambardzumyan's home. The Court reviewed the entirety of the statement, and the only mention of "nine days" is in reference to how long Plaintiff quarantined. (See Audio Transcription of Plaintiff's October 25, 2023 Statement at p. 32.) With respect to materiality, Plaintiff has not shown that the factors Defendant relied on were not material. Defendant found the incident to be an unusual loss such that it found the need to evaluate Plaintiff's activities in and around the time of the loss relevant and to determine if there was any fraudulent conduct or financial incentive to submit a false claim. Finally, to Plaintiff's argument that Defendant manipulated the investigation process, the Court does not find any evidence to support this. Plaintiff claims that after the filing of this motion Defendant conducted an officer's deposition who indicated the collision was an accident without any nefarious involvement by Plaintiff. (Opp., 10:16-19.) Plaintiff does not attach a copy of any deposition transcript for the Court to consider this argument.

Additionally, Plaintiff did not request a continuance or denial of the motion based on this purported new evidence that was discovered after Defendant filed the motion warranting a continuance pursuant to Code of Civil Procedure section 437c, subdivision (h).

Without any opposing evidence

or an opposing separate statement, these are mere arguments without any support. Therefore, as Plaintiff has not raised a triable issue of material fact, Plaintiff does not meet his burden in opposing summary judgment.

Accordingly, the Court grants Defendant's motion for summary judgment.

CONCLUSION

Based on the foregoing, the Court GRANTS Defendant Encompass Insurance Company's motion for summary judgment.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 19, 2026

Sarah
J. Heidel

Judge
of the Superior Court